STATE OF RHODE ISLAND
SUPREME COURT

LUTHER C. PARENTE and ERIC L. STEWART,
Plaintiffs - Appellees,

Case Number:
SU-2024-0387-MP

v.

NELSON LEFEBVRE, in his official capacity as Warden of the Department of Corrections, Anthony P. Travisano Intake Service Center; MICHELLE GARRIEPY, in her official capacity as a Registered Nurse for the Rhode Island Department of Corrections; JENNIFER MAGEAU, in her official capacity as a Registered Nurse for the Rhode Island Department of Corrections; NANCY RUOTOLO HULL, in her official capacity as a Registered Nurse for the Rhode Island Department of Corrections; RHODE ISLAND DEPARTMENT OF CORRECTIONS,
Defendants - Appellants.

On Certified Question Pursuant to Rule 6 of the Supreme Court Rules of Appellate Procedure from the United States Court of Appeals for the First Circuit

REPLY BRIEF OF STATE DEFENDANTS/APPELLANTS

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ARGUMENT

The fundamental flaw in plaintiffs-appellees' and their amici curiae's arguments in support of finding a waiver of the State's Eleventh Amendment immunity from Rhode Island Civil Rights Act (RICRA) actions filed in federal courts is that they read legislative intent out of the analysis. This Court has consistently held that a waiver of the State's Eleventh Amendment immunity can only be found when the General Assembly has "expressly and unmistakably declared" its intent to waive the State's immunity. State Defendants' Brief at 1, 8 (quoting *Andrade v. State*, 448 A.2d 1293, 1295 (R.I. 1982)).

In examining legislative intent, this Court starts with the presumption that the State's "immunity has not been waived." *Torres v. Damicis*, 853 A.2d 1233, 1237 (R.I. 2004) (quoting *In re Sherman*, 565 A.2d 870, 872 (R.I. 1989)). That presumption is overcome only when there are "explicit indices of waiver" in the statutory language.

Id. Furthermore, the "language of the statute" on which a waiver is claimed "must be closely parsed and strictly construed." *Id.* (quoting *Reagan Constr. Corp. v. Mayer*, 712 A.2d 372, 373 (R.I. 1998)).

A. The certified question cannot be answered without considering the General Assembly's intent.

Consistent with this Court's longstanding precedent on waivers of sovereign immunity, the answer to the question certified by the First Circuit can only be determined by consideration of the General Assembly's intent in enacting RICRA.

The analysis cannot, as plaintiffs-appellees and their amici curiae attempt to do, be short circuited by reliance on generalized concepts or analogies to tort law

that the General Assembly may or may not have considered. Any ambiguity as to the General Assembly's intent requires a finding that the State's Eleventh Amendment immunity has not been waived. *See Sossamon v. Texas*, 563 U.S. 277, 287 (2011) ("where a statute is susceptible of multiple plausible interpretations, including one preserving immunity, we will not consider a State to have waived its sovereign immunity"). Focusing on the General Assembly's intent does not result in any impermissible reframing of the certified question, as plaintiffs-appellees allege. *See* Plaintiffs-Appellees' Brief at 1-2. It merely adheres to the analysis this Court's precedent demands for determining whether the General Assembly "expressly and unmistakably declared" its intent to waive the State's Eleventh Amendment immunity from RICRA claims filed in federal court. This is the same certified question as framed by the First Circuit.

In all events, a federal court's framing of a certified question does not place a straitjacket on this Court's consideration of the substantive issues of state law presented. *See Kincaid v. Mangum*, 432 S.E.2d 74, 83 (W. Va. 1993) ("when a certified question is not framed so that this Court is able to fully address the law which is involved in the question, then this Court retains the power to reformulate questions certified to it"); *accord Beard v. Viene*, 826 P.2d 990, 993, n.4 (Okla. 1992) ("under the generally prevailing rule this court possesses the necessary power to reformulate ambiguously phrased certified questions of law"); *W. Helicopter Servs., Inc. v. Rogerson Aircraft Corp.*, 811 P.2d 627, 633 (Or. 1991) ("the majority rule . . . is that this court (the deciding court) has the discretion to reframe questions and is not bound to answer the question as certified"). Indeed, this Court is under no "absolute duty" to even answer a certified question, let alone to confine its analysis to any particular framing of a question of state law. *See*

Jefferson v. Moran, 479 A.2d 734, 738 (R.I. 1984) (Sup. Ct. R. 6 affords "discretion in deciding whether [the Court] should respond to certified questions from the federal courts"); *W. Reserve Life Assur. Co. v. ADM Assocs., LLC*, 737 F.3d 135, 136 (1st Cir. 2013) ("[T]he Rhode Island Supreme Court is the ultimate arbiter of matters of Rhode Island law . . . ."). This is undoubtedly why the First Circuit, in its order certifying this matter, expressly invited this Court to provide "further guidance" on "any other relevant aspects of Rhode Island law" that might "aid in the proper resolution of the issues" raised in this appeal. RA 26. The General Assembly's intent in enacting RICRA is not only relevant to but determinative of whether the State Tort Claims Act's waiver of immunity for "actions of tort" impliedly waived the State's Eleventh Amendment immunity from RICRA claims filed in federal court.

B. The General Assembly made no express declaration of waiver in RICRA and none can be inferred from the statutory language.

Plainly, as the First Circuit already determined, the General Assembly made no express declaration of waiver in RICRA itself, RA 23, so any possible waiver could only "arise[] by necessary implication from the statutory language.'" *Torres*, 853 A.2d at 1237 (quoting *In re Sherman*, 565 A.2d at 872). The principal case involving a waiver of sovereign immunity by necessary implication is *Pellegrino v. Rhode Island Ethics Comm'n*, 788 A.2d 1119, 1123-24 (R.I. 2002). The First Circuit already held that *Pellegrino* is inapposite here because, under plaintiffs-appellees' theory, the alleged waiver by necessary implication arises not from RICRA's text but from a different statute, the State Tort Claims Act. RA 24.

The First Circuit's assessment is correct because the statute at issue in *Pellegrino* committed the state—and only the state—to compensating commissioners for attending state Ethics Commission meetings. *Pellegrino*, 788 A.2d at 1123-24. This right to payment by its very nature could only be enforced by recognizing a waiver of sovereign immunity against the state. *Id.* (citing *Labelle v. Hazard*, 160 A.2d 723, 725 (1960) ("salary of a public official is an incident to the office, and the legal right to receive or enforce the payment thereof goes with the legal title thereto") and *State Employees' Assn'n of N.H. v. Belknap County*, 448 A.2d 969, 972-73 (N.H. 1982) ("Because the existence of a right to receive [government-employment] benefits implies the existence of an appropriate remedy for recovering these benefits, we hold that the . . . statute contains an implicit waiver of sovereign immunity")). Under those unique circumstances, this Court held that the "very statutory provisions . . . entitling plaintiffs to receive . . . compensation were tantamount to a waiver of the state's sovereign immunity if those provisions are to be saved from a mere nugatory existence. . ." *Id.* at 1125.

RICRA contains no similar language from which preservation of the State's Eleventh Amendment immunity would be "tantamount" to negation or abrogation of any clear legislative intent. *See Rhode Island Dep't. of Envtl. Management v. United States*, 304 F.3d 31, 47 (1st Cir. 2002) (absent statutory negation or abrogation, Rhode Island "adheres strictly to the doctrine of sovereign immunity") (citing *Laird v. Chrysler Corp.*, 460 A.2d 425, 428 (R.I. 1983)); *Calhoun v. City of Providence*, 390 A.2d 350, 355 (R.I. 1978) ("We will not attribute to the Legislature the intent to wipe away all barriers to state liability and thereby radically depart from the established conceptions of state tort responsibility without a clear statement regarding such a change."). Merely that RICRA

references "like punishment, pains, penalties, taxes, licenses and exactions of every kind" does not show that the General Assembly necessarily intended to allow "suit against the government" in all circumstances. *See* Plaintiffs-Appellees' Brief at 8-9 (citing this language for the proposition that RICRA "necessarily requires suit against the government"). Even if this language suggested an implicit waiver of the State's immunity, the scope of that waiver remains entirely ambiguous as evidenced by two conflicting Superior Court decisions on this point. *Compare Mitchell v. State of Rhode Island*, No. P.C. 02-6968, 2003 WL 22389814, **1-2 (R.I. Super. Ct. Sept. 23, 2003) (dismissing RICRA claim based on sovereign immunity because there was no express waiver in statutory text) *with Evans v. Rhode Island Dep't of Bus. Regulation*, No. Civ. A. 01-1122, 2004 WL 2075132, **2-3 and n.1 (R.I. Super. Ct. Aug. 21, 2004) (finding waiver of State's sovereign immunity by "necessary implication" based on RICRA's reference to taxation and licensing). At most, this ambiguity might suggest a possible waiver of the State's sovereign immunity for RICRA actions filed in state court, as one Superior Court judge has held. *See Evans*, 2004 WL 2075132, at **2-3; State-Defendants' Brief at 10. But it has no bearing on whether the General Assembly also intended to waive the State's Eleventh Amendment immunity from RICRA claims filed in federal court. This is because it is well-settled that any waiver of a state's sovereign immunity from suit in its own courts is insufficient to effectuate a waiver of the State's Eleventh Amendment immunity from suits brought in federal courts.[1] *Rhode Island Dep't. of Envtl. Management*, 304 F.3d at 47 (a state's consent to suit

[1] Accordingly, this Court need not decide in the context of this appeal whether the State waived its sovereign immunity from RICRA suits brought in state courts. *See* State-Defendants' Brief at 11, n.4.

in its own courts is not sufficient to waive Eleventh Amendment immunity from suits filed in federal court); State-Defendants' Brief at 10-11, 17-20.

That the General Assembly did not intend RICRA to waive the State's Eleventh Amendment immunity for suits in federal court is further evidenced by the Fair Employment Practices Act (FEPA). *See* State-Defendants' Brief at 17-18. FEPA specifies that claims under that statute should be filed in state superior court, and this Court has held that FEPA must be interpreted in pari materia with RICRA. *Horn v. Southern Union Co.*, 927 A.2d 292, 295 (R.I. 2007). Neither of these issues were relevant to this Court's consideration of the State Tort Claims Act waiver of the negligence claims at issue in *Laird*. *See* 460 A.2d at 426. And, although plaintiffs-appellees argue it is "fallacy" to interpret RICRA in a manner similar to FEPA, Plaintiffs-Appellees' Brief at 16, that is exactly how this Court instructed RICRA to be interpreted. *Horn*, 927 A.2d at 295 ("we must make every effort to harmonize the two statutes"). Adhering to this Court's instruction is not fallacious merely because *Horn* arose in the context of an employment discrimination claim rather than in the context of a discrimination in medical treatment claim like that presented here. *See* Plaintiffs-Appellees' Brief at 16-17. *Horn*, after all, examined what statute of limitations should govern RICRA claims and concluded that there was no "adequate reason" for treating RICRA claims differently than FEPA claims for purposes of the limitations period.[2] *Id.* There is nothing fallacious in applying

[2] Although the General Assembly later amended RICRA to add a different limitations period, it tellingly did not rely on the residual statute of limitations applicable to most tort-based personal injury actions. Instead, the General Assembly crafted a limitations period specific to RICRA, thereby reinforcing that it intended RICRA claims to be treated differently from other arguable injuries to the person. State-Defendants' Brief at 16. Plaintiffs-appellees' response that the amendment brought RICRA's statute in limitations into line with the statute of limitations for actions brought under 42 U.S.C. § 1981, Plaintiffs-Appellees' Brief at 18-19, sheds no light at all

the same reasoning here with respect to the General Assembly's explicit designation of state courts as the forum to resolve FEPA claims.[3] Thus, to paraphrase this Court, there is no "adequate reason for not holding that the same legislative determination" relating to where FEPA claims must be filed "should be applied to RICRA, bearing in mind that it is a later-enacted statute and (significantly) silent as to the [venue] issue." *See Horn*, 927 A.2d at 293.

Plaintiffs-appellees' suggest that applying this same reasoning to RICRA would "exclude all federal court jurisdiction" over RICRA claims. Plaintiffs-Appellees' Brief at 20. This is wrong. If RICRA were interpreted in the same manner as FEPA, it would recognize only the State's sovereign right under the Eleventh Amendment to elect to be sued in its own courts, not federal courts. Plaintiffs-appellees' discussion of federal court supplemental jurisdiction, *see id.* at 21-22, completely ignores the Eleventh Amendment, which uniquely applies to state defendants. Even if private parties could be sued in federal court for FEPA and RICRA claims, that does not mean that the State—by enacting a statute that specifically referenced bringing any claims under it in state court—enacted an explicit and unequivocal waiver permitting the State to be sued for such claims in

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on the General Assembly's intent with respect to any waiver of Eleventh Amendment immunity from RICRA actions filed in federal court.

[3]Plaintiffs-appellees quibble that FEPA's choice of venue provision was not in the original act enacted in 1949 but added in 1981—after the State Tort Claims Act was enacted. Plaintiffs-Appellees' Brief at 20, n.5. This additional history merely confirms that the General Assembly was undoubtedly aware of the waiver effectuated by the State Tort Claims Act when it amended FEPA to explicitly designate state courts—not federal courts—as the venue for resolution of FEPA discrimination claims. *See* State-Defendants' Brief at 17-20. Tellingly, in the years since this Court held that RICRA should be interpreted in pari materia with FEPA, the General Assembly has taken no action to clarify the venue for RICRA claims beyond that provided in FEPA. *Id.*

federal court.[4]

C. Courts regularly distinguish statutory discrimination actions from common law actions of tort.

Plaintiffs-appellees' refrain that discrimination claims are basically torts because both causes of action redress personal injury likewise falls far short of establishing the required "explicit indices of waiver" by necessary implication. *See* Plaintiffs-Appellees' Brief at 5-7; *Torres*, 853 A.2d at 1237. As noted in the State-Defendants' opening brief, multiple courts have held that statutorily created actions for discrimination, like those created by RICRA, are not actions of tort. State-Defendants' Brief at 13. Subsequent to filing of the State-Defendants' Brief, the Appellate Court of Maryland drew the same distinction in relation to that state's tort claims act. *Watts v. Prince George's County*, No. 194, 2025 WL 3022275 (App. Ct. Md. Oct. 29, 2025). The Maryland statute imposed a cap on damages resulting from "tortious actions and omissions" committed by county officials. *Id.* at *8. The court concluded that, although the phrase "tortious actions and omissions" was admittedly broad, it did not "extend[] to all 'civil wrongs'" established by state law, including statutory discrimination claims under Maryland's Fair Employment Practices Act.[5] *Id.* at **7-8; *see also id.* at *6 (the Maryland Supreme Court "'has

[4]Much of the amici curiae brief is likewise inapt as it addresses sovereign immunity without specifically addressing Eleventh Amendment immunity. Additionally, amici curiae's references to carve outs under RICRA for certain remedial programs likewise proves nothing as such programs impact private parties not just the state, and also says nothing about permitting suit against the state in federal court. To the extent the amici curiae identifies carve outs specifically for state programs in RICRA, see Amici Curiae Brief at 16-17, that only demonstrates that RICRA, unlike the State Tort Claims Act, did not intend to treat the state identically to private persons and instead recognized unique distinctions between the state and others.

[5]The statutory cap came into play only because Maryland's FEPA incorporated discriminatory acts prohibited by county code. The relevant county code defined the term "employer" as including the county government. *Id.* at nn.3-4. Thus, the county government could be held liable

never held that 'tort action' or any similar phrase, either as used in the Maryland [Tort Claims Act] or any other statute, applies to State statutory claims'") (quoting *Williams v. Morgan State Univ.*, 300 A.3d 54, 63 (Md. 2023)). Thus, the Maryland court held that the cap on damages for "tort actions" or "tortious actions and omissions" was inapplicable to statutory discrimination claims because those claims were not properly regarded as torts. *Id.*

Contrary to plaintiffs-appellees' position, cases like *Watts* and those cited in the State-Defendants' opening brief are not anomalies. *See* Plaintiffs-Appellees' Brief at 12, n.2. Rather, they are part of a mainstream understanding that discrimination claims, like those brought under RICRA, are "statutory cause[s] of action and not [] traditional common law tort[s]." *Imhof v. New York City Hous. Auth.*, 792 F. Supp. 3d 501, 519 (S.D.N.Y. 2025) (collecting New York cases). This reasoning is consistent with this Court's own recognition that discrimination claims did not exist at common law but were created by statute. *FUD's Inc. v. State*, 727 A.2d 692, 697 (R.I. 1999). As one Rhode Island federal district court explained in declining to import tort concepts into statutory discrimination claims created by state law, "the common law of torts exists independently of the statutory law of employment discrimination in Rhode Island." *Lieberman-Sack v. Harvard Community Health Plan*, 882 F. Supp. 249, 254-55 (D.R.I. 1995). Other courts have reached similar conclusions. *See Ayash v. Dana-Farber Cancer Inst.*, 822 N.E.2d 667, 687 (Mass 2005) (statutory action for unlawful retaliation based on gender "created rights that did not exist under the common law" and thus could not be considered a tort); *Dickey v. Mahaska Health Partnership*, 705 F. Supp. 3d 883,

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for employment discrimination claims at least for FEPA suits filed in state court. RICRA contains no similar express waiver, let alone one meeting the stringent standards this Court has established for waivers of sovereign immunity.

892 (S.D. Iowa 2023) (holding that statutory discrimination claims are not torts within the meaning of state waiver of immunity from tort claims).

Although courts interpreting the constitutional right to a jury trial under state and federal law have sometimes analogized "discrimination suits in general, and employment discrimination suits in particular" to common law causes of action for tort or contract, *see FUD's Inc.*, 727 A.2d at 697 (quoting *Dalis v. Buyer Adver., Inc.*, 636 N.E.2d 212, 215 (Mass. 1994)), none of those cases held that discrimination claims are "actions of tort" subject to any waiver of sovereign immunity. The Supreme Judicial Court of Massachusetts, in fact, expressly held that the analogies it drew to common law tort and contract claims for purposes of determining whether the right to a jury trial attached did not somehow transform statutory discrimination claims into torts. *Ayash*, 822 N.E.2d at 687, n.20 ("even though wage discrimination has historical connections to common law tort and contract claims' . . . acts of discrimination—whether intentional or unintentional—do not thereby become torts") (cleaned up with emphasis added). The most that can be said is that statutory discrimination claims, like RICRA, may have some historical connection to either common law tort or contract causes of action where the right to a jury trial attaches. *See FUD's Inc.*, 727 A.2d at 697. But general analogies to common law tort or contract causes of action are far too equivocal to establish any waiver by necessary implication of the State's Eleventh Amendment immunity from RICRA discrimination claims filed in federal courts.[6] *See Graff v. Motta*, 695 A.2d 486, 490 (R.I. 1997) (statutes purporting to waive sovereign immunity must be "strictly construed" and there can be no waiver of immunity by inference); *Calhoun*, 390 A.2d at 355 ("We will not attribute to the Legislature the

[6]RA 24; Plaintiffs-Appellees' Brief at 11 (discussing *Curtis*).

intent to wipe away all barriers to state liability and thereby radically depart from the established conceptions of state tort responsibility without a clear statement regarding such a change.").

Moreover, the First Circuit already held that reliance on cases like *Curtis v. Loether*, 415 U.S. 189, 195 (1974) and similar ones interpreting the right to a jury trial under federal and state constitutions are misplaced.

The remaining cases on which plaintiffs-appellees rely for the proposition that discrimination claims are "akin to" or "sounds basically in" tort are likewise ambiguous and shed no light on the General Assembly's intent with respect to any potential waiver of the State's Eleventh Amendment immunity from RICRA claims filed in federal court. *See* Plaintiffs-Appellees' Brief at 11-12. Indeed, none of these cases involved a state defendant, let alone required application of the stringent standard for waiver of a state's Eleventh Amendment immunity for discrimination claims that, under the law of that jurisdiction, resembled torts. *See, e.g., Kennicott v. Sandia Corp.*, 314 F. Supp. 3d 1142, 1147 (D.N.M. 2018) (applying state tort law to determine where employment discrimination claim arose to resolve choice of law issue); *Krause v. UPS Supply Chain Solutions, Inc.*, No. 08-10237, 2009 WL 3578601, *3 (D. Mass. Oct. 29, 2009) (same); *McMillan v. Lincoln Fed. Sav. & Loan Ass'n*, 678 F. Supp. 89, 92 (D.N.J. 1988) (discussing right to a jury trial in discrimination case); *Walnut Creek Manor v. Fair Employment & Hous. Comm'n*, 814 P.2d 704, 715 (Cal. 1991) (discussing damages allowable in federal housing discrimination cases); *Burchfiel v. Boeing Corp.*, 205 P.3d 145, 158 (Wash. Ct. App. 2009) (discussing recovery of damages for loss of consortium in employment discrimination case). None of these cases address whether the General Assembly intended the State Tort Claims Act's general waiver

of immunity from "actions of tort" to extend to statutory causes of action for discrimination filed under RICRA. *See* RA 25 ("whether RICRA is an 'action of tort' is a question of Rhode Island law, so any reasoning of analogous federal laws might be persuasive but not binding"). Nor do they say anything at all about the specific question of whether the General Assembly intended RICRA to waive the State's Eleventh Amendment immunity from being subject to suit in federal, not state, courts. *See* State-Defendants' Brief at 10-11.

This case law demonstrates that many states do not consider RICRA-type statutory claims equivalent to torts, and at the very least the issue is mixed and uncertain. The question before this Court is not simply deciding for itself whether RICRA claims are torts, but whether the General Assembly, when enacting the State Tort Claims Act, clearly and unambiguously expressed its intent for RICRA claims to be considered torts for purposes of waiving Eleventh Amendment immunity. In light of the above-cited precedent and the fact that RICRA was not even enacted when the State Tort Claims Act was passed, there can be no clear and unambiguous certainty about what, if anything, the General Assembly intended the State Tort Claims Act to mean for RICRA claims. *See Sossamon*, 563 U.S. at 287 (no Eleventh Amendment waiver "where a statute is susceptible of multiple plausible interpretations, including one preserving immunity"). This lack of certainty is evident even within the federal district court. As noted in the State-Defendants' opening brief, two earlier federal district court decisions held, contrary to the underlying decision, that RICRA did not unambiguously waive the State's Eleventh Amendment immunity from suit in federal court. *See* State-Defendants' Brief at 6-7 (citing *Luceus v. Rhode Island*, No. 150389ML, 2016 WL 7971311, *5 (D.R.I. Dec. 13, 2016) (Almond, M.J.), adopted, 2017 WL 318646, *1 (D.R.I. Jan.

23, 2017) (Lisi, J.); *Sinapi v. Rhode Island Bd. of Bar Examiners*, No. CV 15-311-M, 2016 WL 1562909, at *2 (D.R.I. Apr. 15, 2016) (McConnell, J). This lack of consensus among judges of the federal district court shows that the General Assembly's intent to waive the State's Eleventh Amendment immunity has not been "expressly and unmistakably declared" for RICRA claims filed in federal court. *See Andrade*, 448 A.2d at 1295.

Ironically, plaintiffs-appellees accuse the State-Defendants of reading words into statutes, Plaintiffs-Appellees' Brief at 13, but it is they who read into the State Tort Claims Act a non-existent waiver of immunity for RICRA claims. Given the stringent standard for Eleventh Amendment waiver, unless and until the General Assembly expressly and unmistakable declares an Eleventh Amendment waiver for RICRA claims, the State is immune from suit for such claims.

D. RICRA discrimination claims have distinct legal elements, including proof of discriminatory intent, that this Court has never held subjects the State to vicarious liability under the State Tort Claims Act.

Plaintiffs-appellees next try to sidestep the question of legislative intent by shoehorning RICRA claims into the generic definition of a negligence claim, consisting of a breach of a statutorily imposed duty (equal treatment) and resulting personal injury. Plaintiffs-Appellees' Brief at 4-8. But this is like fitting a square peg into a round hole. RICRA is not a garden variety negligence claim like that at issue in *Laird*.[7]

[7]Plaintiffs-appellees take language from *Laird* simply describing what is necessary to have an actionable claim and mischaracterize it as describing the scope of the State's waiver of sovereign

More importantly, treating RICRA claims as garden variety negligence claims ignores the General Assembly's "explicit determination" for RICRA to accomplish a different legislative goal: to "militate against" those discriminatory practices posing a "grave injury to public, health, safety, and welfare." State-Defendants' Brief at 11-12 (discussing *Weeks v. 735 Putnam Pike Operations, LLC*, 85 A.23d 1147, 1158 (R.I. 2014)). In *Preserve at Boulder Hills LLC v. Kenyon*, 312 A.3d 475, 483 (R.I. 2024), this Court distinguished torts from other causes of action aimed at protecting the "invasion of the interests of the people as a whole," as well as from claims (like RICRA) that arise from "interests created by contract or property."[8] *See* State-Defendants' Brief at 12, 15.

Plaintiffs-appellees don blinders by refusing to look at RICRA in its entirety. Just because the facts underlying plaintiffs-appellees' particular RICRA claims could also form the basis of a negligence claim, does not transform the distinct claim they bring under RICRA into a tort, especially given that RICRA also encompasses matters related to "mak[ing]" and "enforce[ing]" contracts and "inherit[ing]," "purchas[ing]", and "sell[ing]" property that would not provide a basis for a negligence or tort claim. *See* R.I. Gen. Laws § 42-112-1(a). And to the extent a RICRA claim could be based on discrimination arising, for instance, from the enforcement of a contract or the selling or inheriting of property, there is no

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immunity, falsely conflating the issue of having a claim with the distinct issue of whether that claim may be brought against the state in federal court. See Plaintiffs-Appellees' Brief at 4.

[8]Plaintiffs-appellees fault the First Circuit for allegedly not "recogniz[ing] the significance" of this Court's decision in *Preserve at Boulder Hills*, Plaintiffs-Appellees' Brief at 4, n.1, but the First Circuit was plainly aware of the case as it had been cited in the State-Defendants' Reply Brief. The more likely explanation is that the decision, which did not involve a state defendant or the stringent analysis applicable to waivers of Eleventh Amendment immunity, simply does not resolve the fundamental question of legislative intent in relation to any possible waiver of the State's Eleventh Amendment immunity for RICRA claims filed in federal court.

doubt the claim involves contract or property. *See* Amici Curiae Brief at 7 (stating that a statutory claim constitutes a tort as long "so long as it creates a private interest not involving contract or property") (emphasis added); *see also id.* (stating that what matters is that claim was "not created by a contract of property interest").

Accepting plaintiffs-appellees' argument that they should be able to bring their specific RICRA claim in federal court simply because the underlying facts in this particular case could also support a negligence claim would result in an unworkable approach where Eleventh Amendment immunity is waived for some RICRA claims but not others based on the facts of the case. Certainly, plaintiffs-appellants do not identify any language in the State Tort Claims Act evincing an intent to enact a piecemeal waiver, or any reason *Laird*'s treatment of a garden variety tort should be superimposed on this entirely different type of statute that post-dated the State Tort Claims Act and pertains to matters involving contract, probate, and property law.

Equally misplaced is plaintiffs-appellees' reliance on *Bergemann v. State*, 958 F. Supp. 61, 69 (D.R.I. 1997). *See* Plaintiffs-Appellees' Brief at 10. *Bergemann*, in fact, supports the State-Defendants' position that the State Tort Claims Act was meant to apply to "traditionally tortious" causes of action, not newly-created statutory discrimination claims. *Bergemann*, 958 F. Supp. at 69. Although the report and recommendation adopted by the district court posited that there were many "circumstances surrounding public employment" that could potentially give rise to tortious conduct, including "sexual harassment and discrimination," these examples were clearly dicta. *Id.* The court's actual holding was that a claim based on a breach of a collective bargaining agreement was not a tort, even though the plaintiff there (as here) claimed damages resulting from an

alleged breach of a statutorily-imposed duty. *Id.* Thus, *Bergemann* concluded that there was no waiver of the State's Eleventh Amendment immunity. *Id.*

The principal difficulty in relying on generic definitions or "off-the-cuff" examples like those mentioned in *Bergemann* is that they bypass the central issue of legislative intent. That is particularly problematic with a catch-all term like "tort," which respected commentators have observed is notoriously difficult to define. *See* Black's Law Dictionary, Tort (12th ed. 2024) (describing the word "tort" as an illusory "legal garbage-can to hold what can be put nowhere else"). There are no "explicit indices" to suggest that the General Assembly deliberately intended the State Tort Claims Act's use of phrase "actions of tort" to reach a panoply of as-of-yet unknown statutory causes of action for discrimination relating to unequal treatment in matters as diverse as contract, inheritance, real estate, taxation, and the host of other areas listed in RICRA. *See id.* Such a boundless (and prescient)[9] interpretation of the phrase "actions of tort" would render the General Assembly's carefully chosen words meaningless as they could be stretched to fit all manner of actions the legislature never expressly contemplated or anticipated might eventually come to pass. *See* Black's Law Dictionary, Tort (12th ed. 2024) (the categories of what is a tort "are quite arbitrary" as the concept "pervades the entire law"). Had the General Assembly necessarily intended its waiver of immunity specifically for "actions of tort" to extend to new causes of action that did not exist at common law, let alone when the State Tort Claims Act was enacted,

[9]The State-Defendants say "prescient" because RICRA was enacted in 1990, several decades after the State Tort Claims Act was enacted in 1956. *See* State-Defendants' Brief at 17. Plaintiffs-appellees offer no explanation for how the General Assembly could have necessarily intended the State Tort Claims Act to anticipate the creation of new statutory causes of action that did not exist at common law when it enacted the State Tort Claims Act.

it could have used phrases like "any civil action" or "any wrongful act." *See, e.g., Dickey*, 705 F. Supp. 3d at 891 (rejecting similar expansive reading of the term "tort"). It did not, and it "is not the function of this Court to rewrite or to amend statutes enacted by the General Assembly." *Pierce v. Pierce*, 770 A.2d 867, 872 (R.I. 2001).

Plaintiffs-appellees' attempt to shoehorn RICRA claims into the general definition of tort also ignores the distinct legal elements the General Assembly established specifically for RICRA claims. Those legal elements require proof of intentional discrimination in relation to specified areas where the General Assembly determined public policy required equal treatment. *See Croce v. State, Office of Adjutant Gen.*, 881 A.2d 75, 80 (R.I. 2005) (proof of discriminatory intent is required for RICRA); *Liu v. Striuli*, 36 F. Supp. 2d 452, 469 (D.R.I. 1999) (RICRA can be violated only by "intentional discrimination, and not by mere negligent acts"). Here, plaintiffs-appellees seek to hold the State vicariously liable under a respondeat superior theory for the alleged intentional discriminatory acts of Department of Corrections employees. *See* RA 15, 143 ¶16, 190, ¶358 (alleging that the State is liable "under the doctrine of respondeat superior for the acts and/or omissions of its agents"). But, this Court has never held—under the State Tort Claims Act or otherwise—the State is vicariously liable for intentional torts committed by state employees. *See Pride Chrysler Plymouth, Inc. v. Rhode Island Motor Vehicle Dealer's License Comm'n*, 721 F. Supp. 17, 23 (D.R.I. 1989) (discussing *Laird* and concluding that the Rhode Island Supreme Court has not "determined whether the General Assembly intended to subject the state to liability for the intentional torts of its employees"). Even outside the context of a waiver of sovereign immunity, this Court has been reluctant to hold employers vicariously

liable for intentional torts committed by their employees. *See Drake v. Star Market*, 526 A.2d 517, 519 (R.I. 1987) (an employer generally is not vicariously liable for the intentional tortious conduct of an employee); *Labossiere v. Sousa*, 143 A.4d 285, 287 (R.I. 1958) ("the law is generally established that . . . an employer is not responsible for [an intentional tort] by an employee unless it is committed while performing a duty in the course of his employment and by express or implied authority from the employer"). As one federal district court held: "Given the reluctance of the Rhode Island Supreme Court to hold employer's liable absent employer negligence or an act in furtherance of the employer's business, this Court can only conclude that the Rhode Island Supreme Court would not import theories of vicarious liability into RICRA. . . ." *Liu*, 36 F. Supp. 2d at 470 (emphasis added).

The General Assembly must be presumed to have been aware of this state of the law when it enacted RICRA. *See In re Opinion of the Justices*, 21 A.2d 267, 269 (R.I. 1941) (legislature is presumed to be aware of "principles of common law recognized by decisions of this court"). It cannot, therefore, have necessarily intended RICRA discrimination claims to be subject to the general waiver of immunity for actions of tort, let alone for that general waiver to encompass RICRA claims premised on a theory of vicarious liability that this Court has held is generally inapplicable where intentional wrongdoing by an employee or agent is alleged. *See Calhoun*, 390 A.2d at 353 ("we do not believe that the Legislature ever intended the [State Tort Claims Act] to operate so as to impose liability upon the state for any and all acts or omissions of its employees and officers which might cause injury to persons"); *Longtin v. D'Ambra Const. Co.*, 588 A.2d 1044, 1045

(R.I. 1991) (although the waiver effectuated by the State Tort Claims Act is broad, it does not "impose strict liability upon the state in all cases").

E. Plaintiffs-appellees' reliance on past litigation waivers relating to Rhode Island Privacy Act claims in federal court is misplaced.

Plaintiff-appellees' reliance on federal district court decisions relating to alleged waivers of Eleventh Amendment immunity under the Rhode Island Privacy Act is likewise misplaced. Plaintiffs-Appellees' Brief at 9-10. Two of the cases on which plaintiffs-appellees rely involved litigation waivers resulting from the state-defendants' voluntary removal of the actions from state to federal courts. *See* Plaintiffs-Appellees' Brief at 10 (citing *Hopkins v. Rhode Island*, 491 F. Supp.2d 266, 275 (D.R.I. 2007) and *Wiggins v. Rhode Island*, 326 F. Supp. 2d 297, 312 (D.R.I. 2004)); *see also Wiggins*, 326 F. Supp. 2d at 301 (noting that action was removed from state court); USDC Docket in *Hopkins*, C.A. No. 04-373L at #1 (notice of removal from state court).

Through this "affirmative conduct in litigation," the state defendants "voluntarily invoke[d]" the federal courts' jurisdiction and, thus, arguably waived the state's Eleventh Amendment immunity. *See Arecibo Community Health Care, Inc. v. Puerto Rico*, 270 F.3d 17, 25 (1st Cir. 2001) ("state may waive its immunity through affirmative conduct in litigation") (citing *College Savings Bank*, 527 U.S. at 675-76 ("we will find a waiver . . . if the State voluntarily invokes [federal court] jurisdiction")). Such a voluntary litigation waiver of Eleventh Amendment immunity is the prerogative of any sovereign state. *See College Savings Bank v. Fla. Prepaid Postsecondary Educ. Expense Bd.*, 527 U.S. 666, 675 (1999) ("a State's sovereign immunity is 'a personal privilege which it may waive at

pleasure'") (quoting *Clark v. Barnard*, 108 U.S. 436, 447 (1883)). Based as it is in the state's voluntary conduct in particular cases, it does not effectuate a broad waiver of the state's immunity in other cases, particularly those arising under entirely different statutes, where no similar litigation conduct is at issue. *See Kennecott Copper Corp. v. State Tax Comm'n*, 327 U.S. 573, 579 (1946) (state's express waiver of immunity in certain contexts militates against finding an implied waiver in other contexts); *Arecibo Community Health Care, Inc.*, 270 F.3d at 28 (Commonwealth's filing of a proof of claim in bankruptcy court waived its immunity for all claims arising out of the same transaction or occurrence as the state's claim); *Board of Regents of Univ. of Wis. Sys. v. Phoenix Int'l Software, Inc.*, 653 F.3d 448, 468 (7th Cir. 2011) ("waiver of immunity is limited to matters . . . arising out of the same transaction or occurrence which is the subject matter of the suit").

The third Privacy Act case on which plaintiffs-appellees rely, *Bergeron v. City of Woonsocket*, No. 23-00093-MSM, 2025 WL 579617, *8 (D.R.I. Feb. 21 2015), arose from motion to dismiss decided by the same judge who found an implied waiver in this case. *Id.* This preliminary ruling on the State's Eleventh Amendment immunity from state Privacy Act claims filed in federal courts was not subject to further review or appeal because the case was subsequently dismissed without reaching the merits. *See id.* at ECF No. 44. In all events, the district court's reasoning was grounded on its assessment that state Privacy Act claims were analogous to preexisting common law tort claims. *See id.* at *8 (analogizing to common law tort of intrusion). The same analogy cannot be drawn here because, as shown above, discrimination claims did not exist at common law but are entirely a

statutory creation.[10] *Supra* at 9-15. In all events, the district court's finding of an implied waiver of the State's Eleventh Amendment immunity by analogy fails to meet the exacting standards established by this Court and federal courts for finding such waivers. *See* State-Defendants' Brief at 8-9.

F. The General Assembly's recent consideration of new legislation expressly declaring its intent to waive "any governmental or sovereign immunities" applied, by its terms, to all state laws, not just direct constitutional claims.

This conclusion is confirmed by the General Assembly's recent consideration of amendments that would have "expressly and unmistakably declared" a waiver of sovereign immunity as a defense to alleged violations of state civil rights laws, including RICRA. Contrary to plaintiffs-appellees' and their amici curiae's arguments, those recent legislative initiatives were not restricted to only direct claims under the Rhode Island Constitution. *See* Plaintiffs-Appellees' Brief at 22-24; Amici Curiae's Brief at 18 n.3. The 2025 acts, for which amici curiae lobbied, referred instead to "any rights" conferred by the "Constitution and laws of the State of Rhode Island." (emphasis added). RICRA is one such law intended to further the right to equal protection secured by article 1, section 2 of the Rhode Island Constitution. *See Earle v. Zoning Bd. of Review*, 191 A.2d 161, 163 (R.I.

[10] In *Preserve at Boulder Hills, LLC*, this Court similarly reasoned that claims for obtaining money by false pretenses sounded in tort, even though the claims were brought pursuant to the state's civil RICO statute. 312 A.3d at 483, *see also* Amici Curaie's Brief at 9. Statutory discrimination claims, however, have no similar analogue to common law tort claims so the same reasoning does not apply here. Moreover, unlike the tort claim at issue in *Preserve at Boulder Hills, LLC*, which this Court held was subject to the statute of limitations for tort actions against the state and local governments, R.I. Gen. L. 9-1-25(a), the General Assembly specifically amended RICRA to provide a separate limitations period distinct from most actions of tort. *See supra* at n.2; State-Defendants' Brief at 15-17.

1963) (interpreting the conjunctive term "and" as meaning both, not one). Accordingly, there would have been no need for the 2025 acts to propose an express waiver of "any governmental or sovereign immunities" had the General Assembly already declared its intent for RICRA claims to be subject to the State Tort Claims Act's waiver of immunity for "actions of tort." State Defendants' Brief at 21-22. The General Assembly, of course, made no such express declaration, and plaintiffs-appellees' improbable reading of the plain language of the 2025 proposed legislation fails to show otherwise. *See Brennan v. Kirby*, 529 A.2d 633, 637 (R.I. 1987) ("a statute or enactment may not be construed in a way . . . to render "sentences, clauses, or words surplusage").

CONCLUSION

Stripped to its essence, plaintiffs-appellees' arguments reduce to a policy disagreement with the General Assembly based on its refusal to expressly waive the State's Eleventh Amendment immunity for RICRA claims filed in federal courts. While there may be credible policy arguments on both sides of this issue, *see, e.g.*, Amici Curiae Brief at 21, those arguments are properly directed to the General Assembly so they can be debated and resolved through the legislative process. *See Simeone v. Charron*, 762 A.2d 442, 448 (R.I. 2000) ("This Court . . . is not 'entitled to write into the statute certain provisions of policy which the [L]egislature might have provided but has seen fit to omit . . . . If a change in that respect is desirable, it is for the [L]egislature and not for the [C]ourt.' ") (quoting *Elder v. Elder*, 120 A.2d 815, 820 (R.I. 1956)); *George A. Fuller Co. v. Schacke*, 45 A.2d 175, 177 (R.I. 1945) ("We conceive it our duty to give meaning to the words of the statute and to leave to the legislature any further liberalization which is

beyond the reasonable limits of judicial construction."). The Court, therefore, should answer the certified question in the negative because the General Assembly has not expressly and unmistakably declared its intent to waive the State's Eleventh Amendment immunity from RICRA claims filed in federal courts.

Respectfully submitted,

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CERTIFICATION OF WORD COUNT AND COMPLIANCE WITH RULE 18(B)

1. This brief contains 6,927 words, excluding the parts exempted from the word count by Rule 18(b).
2. This brief complies with the font, spacing, and type size requirements stated in Rule 18(b).

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CERTIFICATE OF SERVICE

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